CASE 1 **HCH 2741/14**
LEATHOUT INVESTMENTS (PRIVATE) LIMITED
versus
FUTURE CHIRANGO MUVIRIMI
and
PATRONELLA MUVIRIMI
and
REGISTRAR OF DEEDS N.O

CASE 2 **HCH 3532/16**
GAMESGO INVESTMENTS (PRIVATE) LIMITED
versus
LEONFER INVESTMENTS (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE; 17 July 2026

Civil trial

T Mpofu, for the plaintiffs in Case 1 and 2
1st & 2nd defendants in person in Case 1
3rd defendant in Case 1 is in default
Defendant in Case 2 is in default

DEMBURE J: On 28 October 2025, the court, *per* MUSITHU J, granted an application for the consolidation of the two matters under case number HCH 2741/14 (Case 1 herein) and HCH 3532/16 (Case 2 herein). This followed a chamber application filed by Future Chirango Muvirimi, Petronella Muvirimi and Leonfer Investments (Private) Limited in case number HCH 4695/25. The two matters were consolidated for hearing as one matter. The order also directed the Registrar to set down the matters for hearing before the same judge. Subsequently, the matters as consolidated were placed before me for trial.

When the trial commenced, all three defendants in the two matters were represented by Mr *W. Ncube* while the plaintiffs in the same matters were represented by Mr *T. Mpofu*. Since the defendants in both matters bore the *onus* of establishing their defence to the plaintiffs' claims

for the remedy of *rei vindicatio* founded on facts which were common cause, the court directed that they begin first. They had the duty to begin, and the order of procedure was reversed. The defendants first led evidence through the first defendant in Case 1, Mr Future Chirango Muvirimi. While he was still giving his evidence-in-chief, Mr *Ncube* renounced agency and was excused from the matter. The trial proceeded with the first and second defendants in Case 1 now acting as self-actors. On the other hand, following non-appearance by any legal representative of the defendant, a corporate entity, in Case 2, its defence was struck out, and the matter proceeded uncontested. Mr *Mpofu* moved for default judgment to be entered in Case 2. I will deal with that matter later in my judgment. I will first consider the application for absolution from the instance made by the plaintiff in Case 1.

CASE 1 – CASE NO. HCH 2741/14

ABSOLUTION FROM THE INSTANCE

The plaintiff applies for absolution from the instance at the close of the first and second defendants' case in a matter where the duty to begin was on the first and second defendants (*"the defendants"*). When the duty to begin lies with the defendant, the order of procedure should be read as if the defendant was the plaintiff and the plaintiff was the defendant. This application was made in writing in accordance with the case management order issued on 16 June 2026. The first and second defendants oppose the application. They filed their written response thereto on 26 June 2026 as directed. The plaintiff also filed its reply within the time frames stipulated in the case management order. Judgment was thereafter reserved *sine die*.

FACTUAL BACKGROUND

The plaintiff is Leathout Investments (Private) Limited, a company duly incorporated in terms of the laws of Zimbabwe. The first and second defendants are Future Chirango Muvirimi and Patronella Muvirimi, respectively, and the two are married. The third defendant is the Registrar of Deeds cited in his official capacity as the authority responsible for the registration of title in the immovable property in question. The Registrar of Deeds was joined to these proceedings following the judgment of this court before BACHI-MZAWAZI J on 14 September 2022: *Future Chirango & Anor* v *Leathout Investments (Pvt) Ltd & Ors* HH 617/22. However,

on appeal under case number SC 567/23, the Supreme Court allowed the appeal. The order by BACHI-MZAWAZI J was set aside and substituted with an order allowing the joinder of the Registrar of Deeds while dismissing the request for the joinder of the Zimbabwe Revenue Authority. The order was granted by consent on 22 March 2024. The third defendant, however, did not file any pleadings in this matter.

The plaintiff sued out a summons against the first and second defendants on 2 April 2014 seeking the remedy of *rei vindicatio*. The order sought is for the ejectment of the defendants from certain piece of land situate in the district of Salisbury called Lot 1 of Stand 21A Oval Park Township measuring 5 653 square metres, otherwise known as number 69 Glenara Avenue, Highlands, Harare (*"the property"*) together with all persons occupying the said property through them and costs of suit. It is common cause that the plaintiff is the registered owner of the property under Deed of Transfer number 6021/2010 registered on 30 December 2010. The defendants were the previously registered owners of the property under Deed of Transfer number 6177/2007 passed in their names on 12 October 2007. It is also common cause that the property is in the possession of the defendants.

It was pleaded for the plaintiff that as the owner of the property it was entitled to recover possession thereof from the defendants who are in possession of its property without its consent. The defendants filed their appearance to defend and subsequently an exception. The exception was later withdrawn on 16 May 2014. On 27 June 2024, the defendants filed their plea on the merits. They denied that the plaintiff is the valid owner of the property. They further stated that the plaintiff's ownership in question has been challenged by the defendants in case number HC 5960/13, and that the ownership dispute is pending. It was also contended that the plaintiff, together with the other defendants cited under HC 5960/13, unlawfully and fraudulently transferred ownership of the property into the plaintiff's name without their consent.

There is no dispute that the matter in HC 5960/13 is no longer pending as it was withdrawn by the defendants following a Deed of Settlement signed by the parties under case number HC 5960/13 on 16 March 2015. In terms of the said Deed of Settlement, the parties agreed that there shall be no subsequent or further claims by either party against each other. Simon George Wilburn Rudland, a director of the plaintiff, also had to ask the State to withdraw

criminal charges of fraud against the first defendant; the charges were later dropped, and he was acquitted following the withdrawal of the charges after plea. The agreement was the full and final settlement of the dispute under case number HC 5960/13.

After a replication, the matter progressed to a Pre-Trial Conference (*"PTC"*) before MATANDA-MOYO J. The parties agreed to proceed by way of a stated case. The agreed facts were that the plaintiff is the registered owner of the property and that the case under HCC 5960/13 had been withdrawn against the plaintiff among others. The parties disagreed on whether the plaintiff's ownership was tainted with fraud and illegality. After filing heads of argument, the parties appeared before DUBE J (as she then was) for trial. There was a disagreement over how to proceed with the matter, with counsel representing the defendants arguing that there was no agreement to proceed as a stated case. It was argued that the court had to disregard the stated case and allow parties to call witnesses. The first and second defendants subsequently filed a chamber application for directions. The court, in its judgment, held, *inter alia*, that the matter should proceed to hearing as a stated case, with the defendants granted leave to lead evidence, and that they had a duty to begin. See *Muvirimi & Anor* v *Leathout Investments (Pvt) Ltd* HH 798/17. Thereafter, the plaintiff shall, if it wishes, also lead evidence in rebuttal.

The plaintiff appealed the decision of DUBE J in the Supreme Court. In its judgment handed down on 7 June 2021, the Supreme Court allowed the appeal and, in the exercise of its review powers, set aside the judgment: *Leathout Investments (Pvt) Ltd* v *Muvirimi & Anor* SC 60/21. It remitted the matter to this court for the pre-trial conference to start afresh before a judge in chambers. The PTC was subsequently held before MHURI J, who referred the matter to trial on 17 March 2025 on the issues agreed by the parties in the joint PTC minute. The issues for trial are stated as follows:

> "2.1 Whether or not the Plaintiff holds valid title to the immovable property in issue?
> 2.2 Whether or not the Plaintiff is entitled to the ejectment of the Defendants?"

Following the order consolidating this matter with Case 2 under HC3532/16, the trial commenced with the first and second defendants being represented by Mr *Ncube*. The defendants in both matters called the first defendant to the witness stand, and he indicated that he would give evidence in both matters, beginning with Case 1. The matter was postponed when the first

defendant was arrested after the first court session and imprisoned, and he indicated that he was not in the right frame of mind to proceed with the trial. On the rescheduled date, the defendants requested another postponement, stating that their legal counsel, Mr *Ncube*, was unwell. When the matter resumed on 11 June 2026, Mr *Ncube* first requested an audience in chambers to explain his predicament to proceed with the matter. The legal practitioners for the parties appeared before me, and I advised Mr *Ncube* to formally apply for leave to be excused in open court. He duly made an oral application in open court to be excused as his mandate had been terminated. He was withdrawing from the case. He stated that he had duly informed the defendants of the consequences thereof and their rights. The application was unopposed, and he was excused.

The first defendant made another application for postponement. After hearing submissions from him and Mr *Mpofu*, the court dismissed the application and the full reasons are part of the record. Mr *Muvirimi*, who was visibly enraged by the court's decision, took the witness stand, proceeded with his evidence in chief, and was later cross-examined by Mr *Mpofu*, though it took some effort to calm him down. After he was done, the second defendant also testified. The defendants further called Gladys Pedzayi, a Revenue supervisor with the Zimbabwe Revenue Authority (*"ZIMRA"*). After her testimony, the defendants closed their case. I will summarise the parties' written submissions which are as follows:

THE PLAINTIFF'S APPLICATION

Mr *Mpofu* submitted that the plaintiff is seeking absolution from the instance at the close of the defendants' case, where the duty to begin is on the defendants. He cited the case of *Efrolou (Pvt) Ltd* v *Muringani*, HH 122/13, as authority for that position. It was further submitted that the case before the court is for the remedy of *rei vindicatio* in circumstances similar to those in the *Efrolou* case (*supra*). It was argued that the requirements for *rei vindicatio* are not in issue on the pleadings and the evidence led. These are ownership of the property and its possession by the defendants at the time of institution of the claim. Some of the cases relied upon are *Jolly* v *Shannon & Anor* 1998 (1) ZLR 78 (HC) and *Stanbic Finance Zimbabwe Ltd* v *Chivhungwa* 1999 (1) ZLR 262 (H).

It was also argued that it is common cause that the plaintiff holds undisturbed title to the property and the defendants have previously challenged that title and failed. See *Muvirimi & Ors* v *Ramsway Investments (Pvt) Ltd & Ors* HH 349/20. That title was acknowledged by the defendants, and the title deed, being an administrative act, enjoys a presumption of validity until set aside by a competent court. Counsel relied on the cases of *Oudekraal Estates (Pty) Ltd* v *City of Cape Town* 2004 (6) SA 222 (SCA) and *Matsika & Anor* v *Chingwena & Ors* HH 573/20 as authority for that principle. As for the second requirement, it was further argued that it is also common cause that the first and second defendants were in occupation of the property. The *onus* was, therefore, on the defendants to allege and establish their right of retention. They have failed to discharge that *onus*.

In respect of their defence, the court is confined to the pleadings before it. The plea at p 31 states that the plaintiff's title was challenged on the ground that it had been fraudulently procured in case number HC 5960/13. The basis upon which the fraud was being asserted is not set out in the plea. The plea does not set out a defence to *rei vindicatio* at law. There could have been no *onus* discharged by the defendants. The proceedings upon which the plea was predicated no longer exist, as it was withdrawn. The plea was not amended in terms of the law as ruled by the court. In relation to the alleged fraud, the details are not set out in the plea. The law requires that fraud be distinctly pleaded and proved: *Standard Bank* v *Du Plooy* 16 SC 166 and *Shauban* v *Goveia* 11 CTR 289. There being no details given in the plea nor any evidence of fraud given by the defendants, that should be the end of the matter. The evidence given by the defendants does not prove fraud.

Mr *Mpofu* also argued that the allegations that the special power of attorney given to Simon Rudland was undated and subsequently dated, that the special power of attorney was given as security and that the defendants did not appear before ZIMRA officials personally to obtain the tax certificate used to transfer the title, even if correct, do not establish fraud. The requirements for fraud were not addressed. The special power of attorney at p 92 empowered Simon Rudland to sell the property, to conclude an agreement of sale of the property and receive payment and to appear before the Registrar of Deeds and pass transfer. The defendants gave him those powers. They could not give him those powers, then turn around and claim they did not

intend to transfer the property. That it was undated was not proved, and in any case, even if that is correct, it is completely ineffectual. This was resolved in *Muchabaiwa* v *Grab Enterprises (Pvt) Ltd* 1996 (2) ZLR 691 (SC). Once the defendants conceded the existence of a special power of attorney, as they did, the grounds of fraud alleged collapsed. It was further argued that the arrangement between the parties is a *parate executie* and is lawful. Reference was made to the cases of *Osry* v *Hirsch, Loubster & Co Ltd* 1922 CPD 531, *Mercantile Bank of India Ltd & Anor* v *Davis* 1947 (2) SA 723 (C), *Aitken* v *Miller* 1951 (1) SA 153 (SR). The party owed was Ramsway Investments (Private) Limited, as acknowledged in the acknowledgement of debt the first defendant admitted having signed. The second defendant was mistaken in contending that the property was sold to Mr Rudland. He is not the plaintiff.

The plea did not relate to the lifting of the corporate veil. The plaintiff has nothing to rebut if it opens its case. The first defendant accepted that the acknowledgement is extant and its validity was not challenged. The court cannot ignore the relationship between the parties as recorded from the written and signed acknowledgement of debt whose identity was not put in issue. The defendants accepted that they still owe, and the evidence shows that they could not allege fraud. The court in *Muvirimi & Ors* (*supra*) found that there was a real agreement to transfer that takes effect. Once it is accepted that the plaintiff's deed of transfer is extant, it must be given effect until and unless it is set aside. It is common cause that the plaintiff's title has not been set aside and before this court there is no petition for the vacation of the title. They cannot obtain positive relief on their plea. The first defendant accepted that he had instituted proceedings in HCH 1600/26 midway through the trial after he said the case was going against him. Whether that is proper is not before the court. Evidence showed that a challenge to the plaintiff's title was brought before ZHOU J (as he then was), and the challenge was resolved against the plaintiff. The defendants tried to have the judgment reversed but failed. The position remains that the court has refused the challenge to the plaintiff's title.

Counsel argued that the defendants cannot attempt to review ZHOU J's decision by the back door. It is incompetent. Whatever they say does not raise a defence. It does not amount to a right of retention. As the defendants have failed to raise a defence to the claim, the court ought to adopt the course set out in the *Efrolou* case (*supra*), as follows:

> "In the circumstances of this case the defendant has no right to remain in occupation of the property without the plaintiff's authority. The plaintiff is entitled to immediate vacant possession of the property. There is nothing further for the plaintiff to say that should require its witness to take the stand. In the final result the plaintiff's application for absolution from the instance at the close of the defendant's case is hereby granted with costs. The defendant is hereby ordered to vacate the plaintiff's property".

Mr *Mpofu* also submitted that the plaintiff is entitled to costs at a higher scale. The reason is that not only do the defendants not have a defence, but they have also abused the court process by trying to cause delays, have lied to the court, and the first defendant disrespected the court by his disruptive conduct. The plaintiff has been put unnecessarily out of pocket. The prayer was as the one adopted in the *Efrolou* case, with costs at a legal practitioner and client scale.

THE FIRST AND SECOND DEFENDANTS' OPPOSITION

The defendants filed their written submissions, which were quite voluminous. I hasten to state that they further attached to their response a founding affidavit by Simon Rudland in a separate matter, which is improper. They also referred to several materials that were not tendered as evidence before me. The court can consider only the evidence adduced at trial to determine whether a decree of absolution from the instance may be granted. The first and second defendants opposed the application. The defendants submitted that the application must be dismissed as the plaintiff invites the court to ignore overwhelming evidence of fraud and procedural irregularities that go to the root of the plaintiff's claim to title. It was contended that the evidence establishes a *prima facie* case that the transfer of the property in issue was a product of forgery, fraud and the corrupt manipulation of conveyancing processes.

The defendants further related to what they alleged was a denial of their constitutional rights and challenged the appropriateness of the proceedings in Case 2 as well, whereas the record that shows the defendant company in Case 2 was in default. The defendants further provided what they considered background information and details of their business relationship with Simon Rudland. The record of the trial shows that the story the defendants attempted to narrate does not fully and correctly reflect the evidence they adduced before me. Unfortunately, the evidence on record cannot evaporate. The defendants stated that they had challenged the plaintiff's title in HC 5960/13, and that those proceedings were settled by a Deed of Settlement on 16 March 2015. It was argued that the settlement was concluded under circumstances of

economic duress and without proper legal advice. They did not, therefore, waive their rights in respect of what they considered a fraudulent transfer. The acquittal of Simon Rudland of criminal fraud charges does not determine the civil standard, and those proceedings are not conclusive in this matter. The dismissal of their claim before ZHOU J does not affect these proceedings.

There was further reference to what they consider to be procedural irregularities. Those submissions serve no purpose in this application; they merely underline how the defendants have been disrespectful to the court. The law is clear that once the court issues a decision, it binds all and sundry and must be respected. The continued attack on the court's decision to this end was unnecessary and uncalled for.

The defendants further related to what they alleged was the conviction of Mark Richard David Stonier, the conveyancer, for unprofessional conduct. Again, there was no such evidence before me. The defendants acknowledged the test applied for absolution from the instance where the duty to begin is on the plaintiff. They correctly related to the law as settled. Reference was made to the case of *Claude Neon Lights (SA) Ltd* v *Daniel* 1976 (4) SA 403 (A), where the test for absolution from the instance was formulated as follows:

> "…at the end of the plaintiff's case, the test was whether a reasonable man might (not should) give judgment for the plaintiff on the evidence adduced."

Also cited are the cases of *Supreme Service Station (1969) (Pvt) Ltd* v *Fox & Goodridge (Pvt) Ltd* 1971 (1) RLR 1 (A) and *ZIMASCO* v *Tsvangirai & Ors* SC 12/20.

It was argued that the plaintiff mischaracterised the court's inquiry. They argued that they have established a complete defence and the plaintiff must answer. The plaintiff's title is subject to the allegation of fraud. Absolution from the instance cannot be granted where there is evidence that the title was procured through fraud, forgery and abuse of process. One of the requirements for *rei vindicatio* is ownership of the thing. The defendants have adduced evidence demonstrating fraud in the procurement of the plaintiff's title, namely, that the special power of attorney could not have been signed on 15 September 2009. The date was fraudulently inserted by either Stonier or Rudland. That ZIMRA confirmed in writing that the Capital Gains Tax (*"CGT"*) Clearance Certificate was irregularly issued. They did not personally appear before

ZIMRA officials as required by the Capital Gains Tax Act [*Chapter 23:01*]. That ZIMRA's own subsequent confirmation of the irregularity corroborates the defendants' case. Stonier acted in a conflict of interest. The transfer was effected from a non-existent individual, incorrectly described as "Future Chirango". It was further stated that the Registrar of Deeds corroborated the defendants' account. The contention was also that the ZIMRA official, Gladys Pedzayi, acknowledged that she did not conduct the interview and that her evidence does not assist the plaintiff. While they do not deny that they signed the special power of attorney, the document was undated and fraudulently backdated, and it was given as security, not as authority to sell and transfer immediately. The special power of attorney was not exercised in accordance with its terms. The principle of *caveat subscriptor* cannot validate fraud. There was no real agreement to transfer in their case. Their arrangement was a security arrangement.

The defendants further submitted that the abstract theory does not apply, as it protects only a *bona fide* acquirer of property. Because the agreement is void, it cannot transfer ownership. The acknowledgement of debt was never intended to be an agreement of sale but was a financial facility agreement. The amount of the alleged debt is not agreed. The legality of the *paratie excecutie* is doubtful given s 71 of the Constitution of Zimbabwe, which protects property rights. The property was undervalued to enrich Rudland's associates.

It was further argued that Mark Stonier's conviction by the Law Society of Zimbabwe demonstrates that a *prima facie* case has been established. The defendants made extensive submissions on this point, including citing the cases of *Jasat* v *Natal Law Society* 2000 (3) SA 44 (SCA) and *Chizikani* v *Law Society of Zimbabwe* 1994 (1) ZLR 382 (SC). I have already commented that this was not part of the evidence adduced before me. The submissions are, therefore, of no consequence. It was also argued that Simon Rudland stood in an agency relationship with the first defendant, which he breached. He breached his fiduciary duties and could not sell or purchase the property himself. He was entrusted with powers over the defendants' property, which he procured for companies he is associated with. The transaction was not only voidable but void, as fraud unravels everything: *Denel (Pty) Ltd* v *Vorster* 2004 (4) SA 481 (SCA); *Nino Bonino* v *De Lange* 1906 TS 120. Absolution cannot be granted.

There was further reference to an affidavit of Simon Rudland attached to their response, but that document was not part of the defendants' evidence before me. I have already stated that the defendants sought to introduce new evidence through their response, which is improper. The submissions thereto in para 5.7 and its subparts from 5.7.1 to 5.7.19 are therefore off the mark, as they relate to new evidence not adduced at the trial. The defendants further contended that the plea clearly pleaded fraud. It identifies the parties involved in the fraud, the nature of the fraud and the victim. The pleading meets the requirement set out in *Standard Bank* v *Du Plooy* 16 SC 166. The evidence extensively detailed the fraud. The withdrawal of the case HC 5960/13 does not abandon the plea of fraud. The Deed of Settlement merely resolved that matter, and fraud remains their defence. Their defence is that the plaintiff does not have a valid title because it was fraudulently procured. That is a proper defence to a claim for *rei vindicatio*. The defendants are raising a proper shield by asserting that the plaintiff's title is void.

It was also argued that the court need not be strict or technical in relation to pleadings where the defendants were unrepresented. The case of *Rondalia Versekerings Bpk* v *Gous* 1965 (4) SA 657 (A) is cited as the authority for that proposition. The prior decision before ZHOU J does not preclude the defendants' case. The matter was different from the present proceedings. This case can only be determined on its own pleadings and evidence. The presumption of validity of state-issued documents was rebutted from the defendants' evidence. It does not apply where there is evidence of fraud or irregularity.

It was also argued that the plaintiff mischaracterises the first defendant's conduct. They contended further that the court should be slow to penalise an unrepresented litigant for his manners and style when the substance of his evidence is cogent. They submitted that, in this case, there is no abuse of court process. That the second defendant's evidence further supports the fraud defence and was not controverted in material respects. The defendants accordingly challenge the claim for costs at the higher scale as they have not abused the court process. Theirs is a defence of their family home against what they contend was a fraudulent transfer. Their prayer, *inter alia,* was for the court to dismiss the application and to reserve the issue of costs for final determination at the end of the trial.

THE PLAINTIFF'S REPLY

It was submitted that in their submissions the defendants have further doubled down on their disrespect for the court. The court cannot review itself. The defendants accept that they do not have title in para 2.1.1. Nothing before the court changes that fact, and the matter is resolved. The defendants raise issues which are outside the pleadings. It is impermissible to do so: *see Nzara & Ors* v *Kashumba N.O & Ors* SC 18/18; *GN* v *JN* 2017(1) SA 342 (SCA) and *Kauesa* v *Minister of Home Affairs & Ors* 1996 (4) SA 965 (NmS). The attempt to claim that the power of attorney was fraudulently backdated does not arise from the pleadings. In any case, it serves no legal purpose once the defendants accept that the power of attorney was given. It is not true that ZIMRA confirmed that the power of attorney was invalid. The witness from ZIMRA made it clear that the issue of a power of attorney has nothing to do with ZIMRA. The story about Stonier did not arise from the evidence, as he was not called as a witness. They failed to face him with their accusations. The court is hearing for the first time that Stonier was in a conflict situation. This does not arise from the pleadings. There was no evidence proving that he was convicted of fraud. The conviction in any case at p 672 has nothing to do with fraud. That the first defendant gave only part of his name is inconsequential and does not assist him. There is no doubt he is the same person.

Counsel further argued that the defendants agreed to compromise in the proceedings they instituted in 2013 and thereby lost the right to allege fraud in any way. The plaintiff need not open its case to repeat what is common cause. The attempt to allege duress cannot succeed, as it was not pleaded and no evidence was adduced of it. The requirements of economic duress are not satisfied as set out *in International Export Trading Company Zimbabwe (Private) Limited* v *Mazambani* HH 195/17. The previous civil or criminal proceedings give rise to issue *estoppel*. The criminal matter established that the transfer was effected on valid documents, not on fake documents the defendants had created. There is no fraud to rebut. The acknowledgement of debt is not challenged. The parties' transaction occurred pre-2013, and the argument about the 2013 constitution is a non-issue as it was also not pleaded. No issue of valuation arises before the court. They did not plead any agency relationship with Simon Rudland. He was never an agent, according to their own evidence, as he interacted with them on behalf of the lender. It was not pleaded and proved that Simon Rudland sold to companies he controlled.

Mr *Mpofu* further submitted that there is no evidence of fraud. The affidavit of Simon Rudland was not tendered as evidence. Evidence cannot be tendered through submissions. He was never a party to the transaction between the parties. The sale and transfer stand as they have not been set aside. The defendants' belated application cannot stop these proceedings, especially given the compromise and the fact that a similar application failed before ZHOU J. The decision concerned the same parties, and it renders the title impeachable by them. In our law, prescription is substantive, not merely procedural. *Coutts & Co* v *Ford & Anor* 1997 (1) ZLR 440 (H). The decision on prescription not only bars the remedy but extinguishes it altogether. No attempt was made to relate to the requirements of fraud and show how they arise on the facts relied upon by the defendants. Nothing arises for rebuttal by the plaintiff. Their plea and evidence do not set out a defence. The issues raised in their submissions do not derive in any way from the pleadings. The court ought accordingly to follow the course in *Efrolou* (*supra*) and grant the application.

THE LAW

It is settled law that where the duty to begin is on the defendant, the plaintiff may seek absolution from the instance. Generally, where the burden of proof is on the plaintiff, he adduces evidence first, and the defendant may apply for absolution at the close of the plaintiff's case. When the right or obligation to begin lies on the defendant, the order of procedure is taken as if the defendant is the plaintiff and the plaintiff is the defendant. See also rule 56(8) of the High Court Rules, 2021. The test to be applied by the trial court for absolution from the instance at the close of the plaintiff's case is trite. It is whether there is evidence upon which a court acting reasonably could or might find for the plaintiff. In other words, the plaintiff (in this case the defendants) ought to make out a *prima facie* case in the sense that there is evidence relating to all the elements of the claim. The legal position was fully set out in *Efrolou (Pvt) Ltd* v *Muringani* (*supra*) at pp 6-7, where MAFUSIRE J (as he then was) said:

> "Therefore, **the plaintiff in this case could properly apply for absolution from the instance at the close of the defendant's case since the duty or obligation to begin had lain on the defendant.**
> Where absolution from the instance is refused at the close of the plaintiff's case the defendant can go to his own case, can simply close it and still apply for absolution on the same evidence. But the considerations at that stage are different.
> The test for absolution from the instance at the close of the plaintiff's case was laid down in the case of *Gascoyne* v *Paul and Hunter* 1917 TPD 170 which BEADLE CJ accepted as the *locus*

classicus on the point. This was in the case of *Supreme Service Station [1969] [Pvt] Ltd* v *Fox and Goodridge (Pvt) Ltd* 1971 (1) RLR 1.

In the *Gascoyne's* case the test was formulated as follows[1]:

> 'At the close of the case for the plaintiff, therefore, the question which arises for the consideration of the Court is: **Is there evidence upon which a reasonable man might find for the plaintiff?** …. **The question therefore is, at the close of the case for the plaintiff, was there a *prima facie* case against the defendant** …: in other words, **was there such evidence before the Court upon which a reasonable man might, not should, give judgment against (the defendant**)?'

In the *Gascoyne's* case the court noted the difference in the tests where the defendant closes his case without calling any evidence. The court formulated the test for absolution where the defendant closes his case without calling any evidence as follows:

> 'Is there such evidence upon which the Court ought to give judgment in favour of the plaintiff?'

The difference is in the expressions "*might*" and "*ought to*". This difference was then amplified and explained by BEADLE CJ in the *Supreme Service Station [1969]* case aforesaid. At p 4A – 5D the then learned Chief Justice said:

> 'I think it is unfortunate that the magistrate's attention was not specifically directed to the manner in which he should have approached this case. It was never stressed that the test to be applied was **might** a reasonable court give judgment for the plaintiff? No attempt was made to elaborate what the word 'might' meant in this context, and it is as well that I should do so now. The *locus classicus* of the cases dealing with the procedure of absolution from the instance is the old Transvaal case of *Gascoyne* v. *Paul and Hunter*, 1917 T. P. D. 170 … **Gascoyne's** case stresses that it is perfectly competent for a court to refuse an application for absolution from the instance when the application is made at the close of the plaintiff's case but to grant it if the defendant then promptly closes his case and renews the application without calling any evidence at all. There is no inconsistency in two such diametrically opposed orders, though the evidence before the court in each application is identical.
>
> > 'The reason why there is no inconsistency is because the test to be applied when application is made before the defendant closes his case is 'what **might** a reasonable court do?'; whereas the test to be applied when the application is made after the defendant has closed its case is 'what **ought** a reasonable court do?'.
>
> 'The distinction here between 'might' and 'ought' in this context is an important one. It must be assumed that any judgment which a court 'ought' to give must be the correct judgment, as no court 'ought' to give a judgment which is incorrect. Once it is accepted that a judgment which a court 'might' give may differ from that which it 'ought' to give, it is clear that the judgment which it 'might' give and which differs from the judgment which it 'ought' to give must be an incorrect judgment. As a matter of logic, therefore, in considering what a reasonable court 'might' do, allowance must be made for its making a reasonable mistake and giving an incorrect judgment. …. The test, therefore boils down to this: Is there sufficient evidence on which a court might make a reasonable mistake and give judgment for the plaintiff?'

BEADLE CJ further pointed out that the practice in the South African courts and ours was always that in the case of doubt as to what a reasonable court "might" do, a judicial officer should always lean on the side of allowing the case to proceed. He also pointed out that a defendant who closes

> his case without giving evidence risks having an inference being drawn against him from his failure to give evidence contradicting that of the plaintiff." (*my emphasis*)

The law, therefore, provides that where there is insufficient evidence upon which a reasonable man could find for the plaintiff at the end of his case, the defendant would be entitled to absolution from the instance. Likewise, in this case the plaintiff would be entitled to a decree of absolution from the instance where the duty to begin lies with the defendants. The applicable test or the principles on absolution from the instance were also restated in *Lourenco* v *Raja Dry Cleaners & Steam Laundry (Pvt) Ltd* 1984 (2) ZLR 151 (S) at 156-158; *United Air Charters (Pvt) Ltd* v *Jarman* 1994 (2) ZLR 341 (S) 343 B-C; *ZIMASCO (Pvt) Ltd* v *Tsvangirai & Ors* SC 12/20 at p 9 and *Dube* v *Kwesiga & Ors* HH 117/26;

ANALYSIS

The question that arises is whether the first and second defendants, who had the obligation to begin, have made out a *prima facie case* against the plaintiff. The plaintiff's claim is for the remedy of *rei vindicatio.* This common law remedy entitles an owner of a thing to recover his thing from anyone in possession thereof without his consent. The requirements for *rei vindicatio* are well-established. The plaintiff must prove two things: firstly, ownership of the property; and secondly, that the property is in the possession of another person. Once these requirements are satisfied, the *onus* shifts to the defendant to establish a right of retention or justify his possession of the property. Thus, the court in *Jolly* v *Shannon & Anor* 1998 (*supra*) at p 88 made the following pertinent remarks on *rei vindicatio*:

> "The principle on which the *actio rei vindicatio* is based is that an owner cannot be deprived of his property against his will and that he is entitled to recover it from any person who retains possession of it without his consent. The plaintiff in such a case must allege and prove that he is the owner of a clearly identifiable movable or immovable asset and that the defendant was in possession of it at the commencement of the action. Once ownership has been proved its continuation is presumed. The *onus* is on the defendant to prove a right of retention: *Chetty* v *Naidoo*, 1974 (3) SA 13 (A) at 20A-C; *Makumborenga* v *Marini* S-130-95 p 2."

Further, in *Eastlea Hospital (Pvt) Ltd* v *Ndoro & Ors* SC 116/23 at p 7, MWAYERA JA restated the law as follows:

> "What constitutes *rei vindicatio* has been ably set out in a number of cases in this Court. The case of *Indium Investments (Pvt) Ltd v Kingshaven (Pvt) Ltd & Ors* SC 40/15 at p 10 is apposite. This Court illustrated what constitutes the principle of *rei vindicatio* as follows:

> 'The nub of the *actio rei vindicatio* is that an owner is entitled to reclaim possession of his property from whosoever is in possession thereof. As was stated in *Chetty* v *Naidoo* 1974 (3) SA 3 at p 13:
>
> > 'It may be difficult to define *dominium* comprehensively (cf. *Johannesburg Municipal Council* v *Raid Townships Registrar & Ors* 1910 TS 1314 at 1319), but there can be little doubt that one of its incidents is the right to exclusive possession of the res, with the necessary corollary that the owner may claim his property whenever found, from whomsoever holding it. It is inherent in the nature of ownership that possession of the *res* should normally be with the owner, and it follows that no other person may withhold it from the owner unless he is vested with some enforceable rights against the owner (e.g. a right of retention or a contractual right)'.

This Court set forth the remedy of *rei vindicatio* in *Chenga* v *Chikadaya & Ors* SC 7/13 at p.7 when it stated the following:

> 'The *rei vindicatio* is a common law remedy that is available to the owner of property for its recovery from the possession of any other person. **In such an action there are two essential elements of the remedy that require to be proved. These are firstly, proof of ownership and secondly, possession of property by another person. Once the two requirements are met, the *onus* shifts to the respondent to justify his occupation." (***my emphasis*).

In this case, it is common cause that the property is registered in the plaintiff's name. In terms of the law, the registration of a title deed in the Deeds Registry confers ownership or absolute real rights in the immovable property to the plaintiff. See *Takafuma* v *Takafuma* 1994 (2) ZLR 103 (S). The registration of a deed of transfer carries with it the presumption that the person so registered is the owner of the property. The deed of transfer is taken as *prima facie* evidence of ownership of immovable property, and the burden of proving otherwise lies with anyone challenging such title. See *CBZ Bank Ltd v Moyo* SC 17/18, where UCHENA JA said:

> "I must state that a deed of transfer or registration of cession is not conclusive proof of ownership or the rights of a cessionary. See the cases of *Young v Van Rensburg* 1991 (2) ZLR 149 (S) at 156 D-G and *Kassim v Kassim* 1989 (3) ZLR 234 (H) at 237 B-D. **It simply raises a presumption in favour of the holder of the title deed or the rights of a cessionary until the claimant proves on a balance of probabilities that he innocently bought the property or cessionary rights from the owner of the property or cedent.** See the case of *Cunning v Cunning* 1984 (4) SA 585 (T). In any event, the registration of transfer in the Deeds Registry or registration of cession at the offices of a local authority or Deeds Registry does not always reflect the true state of affairs. **A title deed or registered cession is therefore *prima facie* proof of ownership or cessionary rights which can be successfully challenged.** When the validity of title or registered cession is challenged, it is the duty of the court to determine its validity in order to make a ruling which is just and equitable." (*my emphasis*)

The defendants, in their pleadings and even in their evidence, challenge the validity of the registration of the deed of transfer in favour of the plaintiff, claiming it is tainted by fraud. That

the title is in the plaintiff's name and still extant is undisputed. It is also common cause that the property in question is in possession of the first and second defendants. Accordingly, it is beyond doubt that the two requirements of the *rei vindicatio* are already established by facts that are common cause or admitted. Thus, the *onus* was on the defendants to establish a *prima facie* case by establishing a valid defence to *rei vindicatio*. They had the duty to begin and to satisfy the court that they have a right of retention. In other words, they have to justify their occupation or possession of the property. The chief recognised defences to an *actio rei vindicatio* were set out by UCHENA JA in *January* v *Maferefu SC 14/20* at p 7, where it was stated that:

> "There are basically four main defences to a claim of *rei vindicatio*, which are:
>
> (i) that the applicant is not the owner of the property in question.
>
> (ii) that the property in question no longer exists and can no longer be identified.
>
> (iii) that the respondent's possession of such property is lawful.
>
> (iv) that the respondent is no longer in physical control of the property – See the cases of *Chetty* v *Naidoo (supra) and Residents of Joe Slovo Community* v *Thabelisha Homes* 2010 (3) SA 454 (CC)."

I now turn to examine the defendants' defence and consider whether there is evidence upon which the court acting reasonably could or might find for them at this stage. In other words, the question is whether they have made out a *prima facie* case by establishing a right to occupy the property. Before I consider the evidence, it is critical that I examine the pleadings before me. It is from those pleadings that issues for trial arise, and, in particular, that is where the defendants' defence ought to be set out. A case is made in the pleadings and never in written submissions. It is also trite that a litigant is bound by his own pleadings. One cannot therefore plead one case and seek to establish another at the trial. The law is also clear that a party who pays little regard to his pleadings may find himself unable to establish his own case at the trial. The importance of pleadings was fully ventilated in *Medlog Zimbabwe (Pvt) Ltd* v *Cost Benefit Holdings (Pvt) Ltd* SC 24/18 para(s) 25026 where GARWE JA (as he then was) had made the following remarks which are apposite:

> "**In general, the purpose of pleadings is to clarify the issues between the parties that require determination by a court of law.** Various decisions of the courts in this country and elsewhere have stressed this important principle.
>
> …

25.3 In *Kali* v *Incorporated General Insurance Ltd* 1976 (2) SA 179 (D) at 182, the court remarked:

> 'The purpose of pleading is to clarify the issues between the parties and **a pleader cannot be allowed to direct the attention of the other party to one issue and then, at the trial, attempt to canvass another**.'

25.4 In *Courtney–Clarke* v *Bassingthwaighte* 1991 (1) SA 684 (Nm), the court remarked at page 698:-

> 'In any case, there is no precedent or principle allowing a court to give judgment in favour of a party on a cause of action never pleaded, alternatively, **there is no authority for ignoring the pleadings** … and giving judgment in favour of a plaintiff on a cause of action never pleaded. In such a case, the least a party can do if he requires a substitution of or amendment of his cause of action, is to apply for an amendment.'

25.5 In *Imprefed (Pty) Ltd v National Transport Commission* 1993 (3) SA 94(A), 108, the court cited with approval the case of *Robinson v Randfontein Estates GM Co. Ltd* 1925 AD 173, where at page 198 it was stated as follows:-

> '**The object of pleading is to define the issues, and parties will be kept strictly to their pleas** where any departure would cause prejudice or would prevent full enquiry. But within those limits, the court has a wide discretion. For pleadings are made for the court, not the court for pleadings. And where a party has had every facility to place all the facts before the trial court and the investigation into all the circumstances has been as thorough and as patient as in this instance, there is no justification for interference by an appellate tribunal, merely because the pleading of the opponent has not been as explicit as it might have been.'

25.6 In *Jowell v Bramwell-Jones* 1998 (1) SA 836 at 898, the court cited with approval the following remarks by the authors Jacob and Goldrein in their text *Pleadings: Principles and Practice* at p 8-9:

> 'As the parties are adversaries, it is left to each of them to formulate his case in his own way, subject to the basic rules of pleadings … **For the sake of certainty and finality, each party is bound by his own pleading and cannot be allowed to raise a different or fresh case without due amendment properly made. Each party thus knows the case he has to meet and cannot be taken by surprise at the trial**. **The court itself is as much bound by the pleadings of the parties as they are themselves.** It is not part of the duty or function of the court to enter upon any enquiry into the case before it other than to adjudicate upon the specific matters in dispute which the parties themselves have raised by their pleadings. Indeed, **the court would be acting contrary to its own character and nature if it were to pronounce upon any claim or defence not made by the parties.** To do so would be to enter the realm of speculation. … Moreover, in such event, the parties themselves, or at any rate one of them, might well feel aggrieved; for a decision given on a claim or defence not made, or raised by or against a party is equivalent to not hearing him at all and may thus be a denial of justice. The court does not provide its own terms of reference or conduct its own inquiry into the merits of the case but accepts and acts upon the terms of reference which the parties have chosen and specified in their pleadings. In the adversary system of litigation, therefore**, it is the parties themselves who set the agenda for the trial by their pleadings and neither party can complain if the agenda is strictly adhered to**.'

…

25.9 In a paper: *A Judge's View Point*, the *Role of Pleadings* presented by Justices Rares of the Federal Court of Australia and Richard White of the Supreme Court of New South Wales at a judge's symposium, the learned judges remarked:

> '**Precise formulation of the applicant's rights in the initiating document is of central importance.** This is because the pleading is the source from which many other consequences flow in the life of the litigation from filing at first instance through to final resolution in the High Court. **The pleading will be used as the reference point for …the calling of evidence,** the relevance and admissibility of evidence, the **closing arguments**, the reasons for judgments and the availability of arguments on appeal. **At all of these points, the following questions arise: "Was this issue pleaded?"** and "How was this issue pleaded?" **The question is** not the loose one whether the argument could possibly be raised on the evidence at the conclusion of a hearing but **whether the issue has been pleaded** …'

[26] I associate myself entirely with the above remarks made by eminent jurists both in this jurisdiction and internationally. **The position is therefore settled that pleadings serve the important purpose of clarifying or isolating the triable issues that separate the two litigants. It is on those issues that a defendant prepares for trial and that a court is called upon to make a determination. Therefore, a party who pays little regard to its pleadings may well find itself in the difficult position of not being able to prove its stated cause of action against an opponent**." (*my emphasis*)

From the above principles, it is clear that the defendants are bound by what they pleaded in their plea. While the defendants argued that they were unrepresented at trial, that fact does not absolve them of the applicable law regarding the importance of pleadings. They still remain bound by what they had pleaded as their case, and it is that case which they ought to have established by evidence. In any case, the defendants were legally represented when they filed their plea, as is clear from p 32 of the record. The first and second defendants' defence was pleaded in their plea at p 31 of the record as follows:

> "TAKE NOTICE THAT 1st and 2nd Defendants plead to Plaintiff's claim as follows;
> AD PARAGRAPH 1-3
> No issues arise
> AD PARAGRAPH 4
> Defendants deny that Plaintiff is the valid owner of Lot I of stand 21A Oval Park Township, otherwise known as No 69 Glenara Avenue, Highlands, Harare.
> **Plaintiff's ownership of the property in question has been challenged by the Defendants in the High Court at Harare under case number HC 5960/13, and thus its ownership of the property constitutes a dispute pending in court.**
> **It is a fact that the Plaintiff, together with other defendants cited in case number HC 5960/13, unlawfully and fraudulently transferred ownership of the concerned property into the Plaintiff's name without the Defendants' consent**.
> AD PARAGRAPH 5-6

> Plaintiff lacks the right at law to question or challenge the Defendants' possession of the property in question.
> AD PARAGRAPH 7
> The Defendants deny that the plaintiff has a valid and enforceable right to seek the ejectment of the defendants and all those claiming occupation of the concerned property through it.
> Save as aforesaid, the Defendants deny each and every allegation herein contained as if specifically traversed.
> WHEREFORE the Defendants pray for the dismissal of the Plaintiff's claim with costs." (*my emphasis*)

It is apparent from the defendants' plea that their defence was predicated on the challenge to the plaintiff's title, the alleged pending proceedings in case number HC 5960/13. It is further stated that, arising from those proceedings, it is a fact that the plaintiff, together with the other defendants therein, unlawfully and fraudulently transferred ownership of the property into the plaintiff's name without their consent. It is trite law that the party who alleges fraud must plead and prove it: see *Standard Bank* v *De Plooy & Anor*; *Standard Bank v Coetzee & Anor* (1899) 16 SC 161 at 166; *Courtney-Clarke* v *Bassingthwaighte* 1991 (1) SA 684 (Nm) at 689F-G and *Muzonda & Ors* v *Usayiwevhu* & Ors HH 107/12 at p 4.

The defendants' plea does not distinctly plead the facts underlying the alleged fraud. All they sought to do was to premise their defence on a challenge to the plaintiff's title, that is, a matter they alleged was then pending. There are no averments that address the essential elements of fraud. To simply say ownership was unlawfully and fraudulently transferred into the name of the plaintiff without their consent is clearly not sufficient pleading of a claim founded on fraud. Further, in any event, the first defendants accepted that the matter under HC 5960/13 was withdrawn following a Deed of Settlement on 16 March 2015. Once the matter was withdrawn, the defendants are left with no defence in this case. It follows that they cannot establish any *prima facie* case where what their defence was premised on no longer exists. That resolves the matter. It is trite that nothing can stand on nothing.

In the Deed of Settlement, which is at law a compromise, the defendants bound themselves in para (iv) that "there shall be no subsequent or further claims by either party against the other." The truth of the contents of the document was judicially admitted by the first defendant and can therefore be relied upon by the court. The settlement is also filed in the court record under HC 5960/13. The parties before me accepted that compromise, and equally the defendants are bound by it. Their purported defence cannot be sustainable in the face of that

compromise, and the withdrawal of the matter which they pleaded was the foundation of their defence.

The defendants clearly realised the futility of their case after the withdrawal of the matter in HC 5960/13 and sought to amend their plea. They subsequently filed a notice to amend their plea in terms of rule 41(1) on 17 March 2022. The record shows that no objection to the notice of amendment was raised within the stipulated period. The amendments, however, were not effected in terms of the rules. Rule 41(7) in peremptory language states that:

> "(7) Unless the court otherwise directs, **a party who is entitled to amend shall effect the amendment by filing each relevant page in its amended form**:
>
> Provided that, where the amendments are so numerous or of such a nature that the making of them in writing would render the document difficult or inconvenient to read, copies of the pleadings as amended shall be filed." (*my emphasis*)

As I have already ruled at the trial, the defendants did not effect the amendments as per the mandatory provisions of subrule (7). This means that there was no amended plea before the court. The same was never amended up to the stage of this judgment. The first and second defendants are stuck to their plea at p. 31 of the record, which I quoted verbatim above. That plea was entirely hinged on the matter HC 5960/13, which was pending at the time the plea was filed and in terms of which the defendants were challenging the plaintiff's title on the ground of fraud. But since that matter, as admitted by the first defendant, was withdrawn following the Deed of Settlement, the defendants are left without anything to stand on. Consequently, the defendants had nothing to establish with evidence at trial. Absolution of the plaintiff from their case would automatically ensue.

In any case, they failed to prove the essential elements of their case or the defence of fraud. The law is settled on the requirements or essential elements which must be pleaded and proved in a claim for fraud for the plaintiff's title to be considered tainted with fraud or illegality and therefore void *ab initio*. The defendants, as the ones asserting fraud, had the *onus* of proving the facts so asserted. It is trite that he who alleges must prove. In other words, he who makes an affirmative assertion, whether the plaintiff or defendant, bears the *onus* to establish the allegation. See *Nyahondo v Hokonya & Ors* 1997 (2) ZLR 457 (S) at 459, where court held that:

> "Where a person against whom a claim is made is not content with a mere denial but sets up a special defence or raises a fresh issue (when he confesses and avoids) then he is regarded in

> respect of that defence as being the claimant; for his defence to be upheld he bears the *onus* of satisfying the court that he is entitled to succeed on it."

Thus, the defendants had to plead and prove the requirements of fraud namely that there is a misrepresentation made by the other person, with the knowledge that the statement of fact was false or recklessly without caring whether it is true or false; with the intent to deceive; that the other party relied on the false statement and that the defendant suffered prejudice or damages as a direct result of the misrepresentation. The legal position was affirmed clearly in *Mashangwa & Anor* v *Makandiwa & Ors* HH 10/18 at p 3, where MANGOTA J (as he then was) remarked:

> "Professor G Feltoe defines fraud in his "*A Guide to The Zimbabwean Law of Delict*", 3rd Ed, p 8. The learned author states that the delict of fraud falls under deceptive practices. He says **fraud is committed when the defendant, with intent to defraud, makes a statement to the plaintiff knowing or suspecting that the statement is false and intending that the plaintiff will act upon it to his prejudice.** He stresses that, if the plaintiff suffers loss as a result of such fraudulent deception, he is entitled to claim damages. **With fraud, therefore, the false statement is made to the plaintiff who acts upon it**.
>
> The definition which Professor Feltoe gave for the delictual action of fraud is, with minor variations, substantially the same as fraud as defined in the law of contract. Innocent Maja defines fraud from the perspective of the law of contract. The learned author states in his book: "*The Law of Contract in Zimbabwe*" p 96, that:
>
> > 'For an innocent party to claim delictual damages successfully, she/he must establish that:
> >
> > (a) there was a wrongful or unlawful conduct (by either commission or omission) by the wrongdoer:
> >
> > (b) the conduct led to the harm of a person, property or finances, and
> >
> > (c) the wrongdoer caused patrimonial loss either intentionally or negligently.'" (*my emphasis*)

The defendants' cursory attempt to plead fraud was manifestly fatal. In any event, the claim of fraud was not established at all. Their evidence failed to establish any of the elements of fraud or that the deed of transfer registered in the plaintiff's name was tainted with fraud. Even in their submissions, there was no attempt to relate the requirements to the facts or the evidence they led. In fact, the defendants' response was full of references to documents and matters which were never part of the evidence adduced by the defendants and the witness from ZIMRA. The court can only rely on the evidence adduced to determine whether a *prima facie* case was established. It is trite that a case is never made in the written submissions. The attempts also to place before me an affidavit by Simon Rudland from a different matter which was never related

to in oral testimony do not assist the defendants. It is impermissible for the court to consider materials and evidence which were not adduced before it. It is a settled principle of the law that the function of the court is to consider the evidence before it along with the pleadings and submissions. The court would be acting out of its character if it considers evidence not adduced before it. That would be a gross irregularity. See *Nzara & Ors* v *Kashumba N.O & Ors* SC 18/18. The attempts by the defendants to make a new case in their submissions divorced from what they had pleaded and to relate to evidence not before the court cannot strengthen their case.

It was not shown before me that there was any special power of attorney that was fraudulently backdated. While the first defendant admitted that he had given a special power of attorney to Simon Rudland, which also empowered him to sell the property and effect the transfer, he claimed the power of attorney was undated. He, however, did not place any undated special power of attorney before me. It is settled that the court shall not consider any evidence not formally offered unless the truth of its contents has been judicially admitted. There was no judicial admission of the truth of the contents of any undated power of attorney, and accordingly the reference to documents not tendered as evidence before the court is unhelpful. Thus, a bundle of documents filed by the parties before trial remains that. The documents are not evidence until formally tendered at trial, except where the truth of their contents is judicially admitted, in which case the documents may be considered by the court.

There is no evidence of any fraudulent documents allegedly tendered to ZIMRA as well as the Registrar of Deeds for the registration of the title in the plaintiff's name. The defendants produced none of the alleged fraudulent documents. The witness from ZIMRA also conceded that she did not partake in the interviews for the CGT in respect of the property. She admitted she had no record or file for the transaction with her. She also stated that, as ZIMRA, the issue of the validity or otherwise of a special power of attorney is not their concern. Her evidence was entirely generalised and not directly related to the defendants' case. The evidence did nothing to corroborate the defendants' testimony. She also could not confirm whether the CGT Clearance certificate was obtained fraudulently or whether there was any irregularity in the process, of which she even appeared to be ignorant.

The first defendant did not fare well either. He was disrespectful to the court on many occasions. When it was time for him to be cross-examined, he initially protested what he called the court's unfair decision not to allow a postponement of the matter. He could not challenge the court decision that way. A litigant must abide by the court's decision and ought not to display conduct of defiance against the court. He did not lead any evidence on Mark Stonier's alleged conviction and its link to the fraud allegations in question. Mark Stonier was also not called to give evidence. The extensive references to Mark Stonier's alleged misconduct proceedings were simply made in submissions. He never put any allegations of any fraudulent conduct or fraudulent transfer against the said Stonier. The first defendant did not adduce any evidence to show that Mark Stonier committed any fraud, was in a conflict of interest, or that he submitted any fraudulent documents to any of the relevant authorities. It is impermissible to purport to do so in written submissions.

There was no confirmation from ZIMRA that any fraudulent documents were used to obtain the CGT certificate. The witness from ZIMRA did not confirm the existence of any fraudulent documents allegedly used, nor did she comment on the actual documents used, as she had no file for the transaction. The first defendant did not produce any document from ZIMRA regarding the transaction in question or confirming the alleged fraudulent conduct of Simon Rudland or Mark Stonier. There was no evidence of any agency relationship he adduced at the trial. In any case, that was no pleading to support any allegation of an agency relationship. They attempted to make a new case in the submissions.

The evidence of the second defendant was also poor and insufficient to establish a valid defence to the remedy of *rei vindicatio*. She repeated the allegation that the special power of attorney they gave to Simon Rudland was undated. Again, as with the first defendant, no evidence was adduced to substantiate this assertion. She did not tender the alleged fraudulent document as evidence. She even claimed that the fraud is in how Simon Rudland became the owner of their property. Surely that has no foundation at all even from the facts admitted in the pleadings. She did not appreciate her own case. The plaintiff is not even Simon Rudland. This is an extract of part of what she said in the examination in chief, which showed how she failed to advance her case before the court:

> "I just want this court to look into the issue as to how Simon became the owner. According to me, that is where there is a fraud. I never transacted with Simon Rudland. My issue is that all four titles were changed in terms of ownership with fraudulent documents. This is where our claim for fraud is emanating from."

As with the first defendant, her bald assertions are insufficient to establish a *prima facie* case. She, too, merely generalised and did not place before the court any evidence to support her assertions. Thus, as the first defendant's testimony was bald and unsubstantiated, her testimony was just as bald too. She established no fraud either. It is trite that the court can only act on evidence. Bald and unsubstantiated assertions cannot establish a party's purported or announced position. MAVANGIRA JA in *Chinyenze* v *Law Society of Zimbabwe* SC 08/22, para 39, restated the legal position as follows:

> "It is trite that **courts,** and indeed the Tribunal, **decide matters on the basis of evidence that is placed before them and not on the mere say so of a litigant**. Every averment made must be substantiated by evidence in order for the court to place any weight on it. **Bald assertions will not assist a litigant who desires to establish his case."** (*my emphasis*)

See also *Buchwa Iron Ore Mining Company (Pvt) Ltd* v *Sheriff of the High Court Gweru N.O & Anor* SC 94/24 para 34.

The entire case for the first and second defendants was not supported by any evidence save for their mere say-so. Nothing was said about the essential elements of fraud. The first defendant, in fact, later alleged that he had filed another application under case number HCH 1600/26 to challenge the plaintiff's title, and that, due to what he said was a realisation that his case had been crisscrossed, he had decided to put forward his story in that separate matter. He did not relate to any affidavit from that case; not even the affidavit of Simon Rudland attached to their response was alluded to. He also did not incorporate the evidence in that other matter before me. His decision to divert attention to other proceedings to tell a story which they could not tell before me clearly showed that the defendants conceded their failure to establish a *prima facie* case before me. Otherwise, there would be no reason for the defendants to fail to adduce evidence before me and claim he would succeed in another pending matter. The defendants' stance does not prevent this court from proceeding with the matter and also is of no assistance to them in any way.

The first defendant admitted that the parties once appeared before ZHOU J under case number HC 10985/15. This was a claim the defendants filed against the plaintiff and other

defendants. In that matter, the defendants, as the plaintiffs therein, sought, *inter alia*, the cancellation of the acknowledgement of debt signed by the first defendant with Ramsway Investments (Private) Limited and the nullification of the transfer of the property into the plaintiff's name. That claim challenging the plaintiff's title, among other things, failed. In the court's judgment before ZHOU J, it was held that the defendants' claim had prescribed. See *Future Muvirimi & Ors* v *Ramsway Investments (Pvt) Ltd & Ors* HH 349/20. At p 7-8, the court concluded that:

> "Thus, **given that the plaintiffs are seeking reversion of ownership which has passed, they were enjoined by law to claim it within three years from the date that the cause of action arose**. The plaintiffs became aware of the facts upon which the alleged breach of contract, fraud, *parate executae* and the *pactum commissorium* etc. are predicated in 2010. They even instituted proceedings which they did not prosecute to finality based on the same causes of action relied upon in the instant case. **Their claim has therefore prescribed.**
>
> The evidence led is not such that the court might or could find for the plaintiff on it. There is also no doubt created by the evidence led. No real purpose will be served by placing the defendants on their defence merely to confirm that which the plaintiff's witness has already stated in relation to when the cause of action arose. For these reasons, based on the prescription of the debt, absolution from the instance is warranted." (*my emphasis*)

The first defendant admitted that they failed to upset this judgment on appeal. That is also a fact, as *per* the Supreme Court order dated 6 October 2023 under case number SC 256/20, at pp 112-113 of the record. The judgment by ZHOU J remains extant. The court was emphatic that the defendants' claim for reversion of ownership to them from the plaintiff had been extinguished by prescription. Those findings cannot be reversed by this court as it is *functus officio*. The failure of their appeal means that decision is final and still extant. It is trite that an extant court order remains binding on the parties until and unless it is set aside on appeal or review or by a competent court through the appropriate procedure for rescission of a court order in terms of the relevant rules of court. It does not matter that one party believes it is erroneous; it has the force of law and must be given effect to. See *Mauritius & Anor* v *Versapak Holdings (Pvt) Ltd (in Liquidation) & Anor* SC 02/22.

I agree with Mr *Mpof*u that, under our law as set out in s 14 of the Prescription Act [*Chapter 8:11*], which differs from English law, prescription is not merely a matter of procedural law but of substantive law. The court interpreted the provisions of s 14 in *Coutts & Co* v *Ford & Anor* 1997 (1) ZLR 440 (H) at 443, where CHIDYAUSIKU J (as he then was) remarked:

> "Thus, the clear intention of the legislature as expressed in the above provision [s 14 of the Prescription Act] is to make prescription a matter of substantive law as opposed to procedural law. **The above provision clearly extinguishes the debt as opposed to merely barring the remedy**. The wording of the exception to the provisions, namely subs (3), puts the above interpretation beyond doubt." (*my emphasis*)

Accordingly, once the court holds that the defendants' claim for the reversion of title to the property has prescribed, it means they have entirely lost the right to claim ownership. Prescription thus extinguishes not only the claim but the right to do so in any way. The defendants cannot impeach the plaintiff's title in any manner given the extant judgment of the court. Their right to do so has been extinguished by prescription altogether. It cannot suddenly arise before me or in any other pending litigation in HCH 1600/26 as that issue is now *res judicata*. The principle of issue *estoppel* would apply. There is no doubt that the same parties before me were before ZHOU J, except that other plaintiff companies and defendants are not before me in this matter. The defendants would not challenge the plaintiff's title and succeed. Their case is sealed. Their precarious position was further compounded by the withdrawal of the matter under HC 5960/13, which left them with nothing to hold onto. Their entire defence was completely annihilated by the withdrawal of that matter. There could not be any evidence to sustain a defence not pleaded and one predicated on a matter that no longer exists. In any case, there was no evidence to establish any of the essential elements of fraud in this case.

The plaintiff's title in all this remains unimpeached by the evidence from the defendants. They also did not make any counterclaim to have the deed of transfer set aside on any basis. They were content to defend the proceedings, but their case collapsed upon the withdrawal of the claim under HC 5960/13. In terms of para (iv) of the Deed of Settlement, they also waived their rights to make any further claims against the plaintiff and other defendants. The allegation that they signed this deed of settlement under economic duress is a belated attempt to resile from a compromise they never challenged in any court, including in their testimony in court. The claim that they were weaker parties fighting a well-oiled economic giant in the plaintiff's name was made only in their response. It is of no effect at all and accordingly a non-issue from the pleadings and evidence before me. It does not arise, and that should be the end of that story.

Nothing should also turn on the defendants' attempts to smuggle in new evidence and take new positions in their submissions. It also made no sense to allege that Simon Rudland had

no power to pass transfer where one admits that the special power of attorney he gave him empowered him to do so. The claim that a fraudulent date was inserted, as already found, was just bald, as no evidence was adduced to substantiate or prove that allegation.

The defendants were simply arguing in the air in their written submissions. They related mainly to evidence which was not adduced before me. The alleged unprofessional conduct by Mark Stonier and his alleged conviction, the alleged undated power of attorney, the attached affidavit by Rudland, the alleged agency relationship, and allegations touching on the piercing of the corporate veil are all not supported by the evidence actually adduced by the first and second defendants and their witness from ZIMRA. Nothing was placed before me from ZIMRA confirming anything, nor was there anything from the Registrar of Deeds. The first defendant, in fact, admitted that Simon Rudland was acquitted of fraud in the Magistrates Court and that, in that court's decision, it was found that no fake transfer documents had been lodged at the Deeds Office for the registration of the title in the plaintiff's name.

There is nothing for the plaintiff to rebut. It has no *onus* to prove the validity of its title. It is trite that administrative acts are deemed valid and enforceable unless set aside. This is what has become commonly referred to as the *Oudekraal* rule: *Oudekraal Estates (Pty) Ltd* v *City of Cape Town* 2004 (6) SA 222 (SCA). Confirming the *Oudekraal* principle in *Merafong City* v *AngloGold Ashanti Ltd* 2017 (2) SA 211 (CC), the majority rightly stated that the principle applies for 'rule of law reasons and for good administration.' As the court further held, it is in accordance with the rule of law that the 'validity of the decision has to be tested in appropriate proceedings' and 'the sole power to pronounce that the decision is defective, and therefore invalid, lies with the courts.' See also *Matsika & Anor* v *Chingwena & Ors* HH-573-20. In *casu*, the plaintiff's title, being unchallenged and extant, remains enforceable against the whole world, including against the defendants. The registration of that title is not a mere matter of form. The deed of transfer is *prima facie* evidence of ownership and the best evidence for proving ownership of immovable property. See *Takafuma* and *CBZ Bank Ltd* (*supra*).

The defendants' failure to make out a *prima facie* case in respect of any right of retention means that there is no valid defence to defeat the plaintiff's claim for *rei vindicatio*, as well established by admitted facts. It is trite that it is not necessary for a party to prove any fact

admitted or to lead any evidence to contradict the admitted fact on record. This is fully provided for under s 36 of the Civil Evidence Act [*Chapter 8:01*] which reads:

> "**36. Admissions**
> (1) An admission as to any fact in issue in civil proceedings, made by or on behalf of a party to those proceedings, shall be admissible in evidence as proof of that fact, whether the admission was made orally or in writing or otherwise.
> (2) …
> (3) **It shall not be necessary for any party to civil proceedings to prove any fact admitted on the record of the proceedings**.
> (4) **It shall not be competent for any party to civil proceedings to disprove any fact admitted by him on the record of the proceedings**:
> Provided that this subsection shall not prevent any such admission **being withdrawn with leave of the court**, in which event the fact that the admission was made may be proved in evidence and the court may give such weight to the admission as the court considers appropriate, bearing in mind the circumstances in which it was made and withdrawn." (*my emphasis*)

The legal effect of an admission was also fully explained in *Manyenga* v *Petrozim (Pvt) Ltd* SC 40/23.

The case is resolved once the defendants fail to establish a *prima facie* case. The course to adopt is as enunciated in *Efrolou* (*supra*) at p 10, where the court concluded that:

> "In the circumstances of this case the defendant has no right to remain in occupation of the property without the plaintiff's authority. The plaintiff is entitled to immediate vacant possession of the property. **There is nothing further for the plaintiff to say that should require its witness to take the stand**.
>
> In the final result, the plaintiff's application for absolution from the instance at the close of the defendant's case is hereby granted with costs. The defendant is hereby ordered to vacate the plaintiff's property …" (*my emphasis*)

Accordingly, the plaintiff's title not having been impeached and there being nothing to rebut as the defendants failed to establish a valid defence to *rei vindicatio* it must follow that the plaintiff be absolved from the defendants' case and that the defendants be ordered to vacate the plaintiff's property called Lot 1 of Stand 21A Oval Park Township, measuring 5 653 square metres, otherwise known as number 69 Glenara Avenue, Highlands, Harare.

THE QUESTION OF COSTS.

The plaintiff seeks costs of suit at the higher scale for the reasons already alluded to earlier. The defendants opposed the motion, arguing that there was no abuse of court process. It is settled law that the award of costs is a matter wholly within the discretion of the court. Costs

on a legal practitioner scale are not lightly granted, even against a self-actor. However, there is a limit beyond which the court may be justified in expressing its displeasure at the conduct of the losing party by awarding punitive costs, even where he or she is a self-actor. This can arise in circumstances where there is abuse of court process. Thus, such costs are justified where the proceedings are reckless or frivolous or vexatious, in malicious proceedings, where there is dishonesty or fraud, and disrespectful conduct to the court, among other grounds. Thus, in *Karengwa* v *Mpofu* HB56/15, the court made the following pertinent remarks:

> "On the issue of costs, the court is generally reluctant to award costs on an attorney and client scale against a self-actor. **In exceptional circumstances, however, where there is a clear abuse of court process the court is inclined, in such event, to order costs against a self-actor on a punitive scale.** The awarding of costs is at the discretion of the court." (*my emphasis*)

In this case, the defendants' conduct calls for me to express my displeasure with an order for punitive costs. At various stages of the case, the defendants tried to frustrate the progress in the matter. The first defendant went so far as to seek to mislead the court in his application for postponement by lying to the court and purportedly disowning what his then legal practitioner had openly said in court and in his presence, including facts apparent from the record. He was difficult on the stand, grumbling about the decision to proceed with the trial. The court was indeed patient with him, as he was disruptive and rudely attempted to defy the court's decision to proceed and allow cross-examination.

The second defendant was also not to be undone. Before she took the witness stand, she sought to rake in a legal practitioner, one Mr *T Gonzi* from Kantor and Immerman, to seek a postponement. The legal counsel later conceded that he was not properly before the court and had no proper mandate to even appear before me in the first place. He had to apologise to the court vehemently to avoid the consequences of his impromptu display of unprofessional impertinence and his attempt to act without proper mandate. I forgave him and opted not to take any further action on the issue. However, these delaying antics are indeed deplorable conduct.

The defendants intensified their insolence toward this court in their submissions, going so far as challenging the appropriateness of these proceedings before me. It is trite that the court cannot review itself and once it has made a decision, the decision has the force of law. It must be obeyed by the parties. The law provides remedies for a party dissatisfied with any court decision.

There is no room in our system of administration of justice for any litigant to vociferously protest the court's authority and submit lengthy arguments seeking to argue with the court. This disdain for the court's authority ought not to be condoned and must be condemned in the strongest of terms. That the defendants are self-actors does not give them the licence to disrespect the court and its processes. They have further put the plaintiff out of pocket unnecessarily.

Pursuing a defence which had collapsed after the withdrawal of the claim in HC 5960/13 was also reckless. There was no longer any defence to persist with. Additionally, the court's decision *per* ZHOU J strikes at the heart of the defendants' claim for reversion of ownership of the same property. With their substantive right to seek reversal of the registration of title in the plaintiff's name having been extinguished by prescription, their case is clearly no longer a genuine pursuit of justice but merely an attempt to harass the defendant. Their conduct crossed the Rubicon of responsible litigation. I, therefore, accept Mr *Mpofu*'s submission that the defendants' conduct indeed amounts to an abuse of court process and ought to be penalised. In the premises, I find an award of punitive costs proper and just in the circumstances.

DISPOSITION

People must learn to live with the consequences of their own conscious decisions and actions. Allegations of fraud are serious and are not merely assumed. They must be strictly proved. The defendants' case stood on nothing after the matter in which they challenged the plaintiff's title was withdrawn by the consent of the parties under HC 5960/13. The withdrawal of the matter was fatal to their case. Without a proper pleading to base the defence, their fate was sealed. In any case, when they took the witness stand, their defence indeed crumpled further in spectacular fashion. The first defendant even conceded under cross-examination that his case was crisscrossed and he now had to institute fresh proceedings to tell the court his story. Unfortunately, he could not seek refuge from the claim before the court in other pending proceedings. ZHOU J spoke and did so finally that their right to seek reversion of the ownership of the property has been extinguished by operation of law. Nothing should arise for the defendants in all this save to simply waste the court's time and the judicial resources which ought to be reserved for worthy causes. With that, unfortunately, the plaintiff has been dragged along

thereby incurring unwarranted costs. Given these circumstances, what the plaintiff seeks ought to be granted.

Accordingly, I make the following order:

1. The plaintiff is absolved from the first and second defendants' case.
2. The first and second defendants and all those claiming occupation through them shall vacate certain piece of land situate in the district of Salisbury called Lot 1 of Stand 21A Oval Park Township, measuring 5 653 square metres, otherwise known as number 69 Glenara Avenue, Highlands, Harare held under Deed of Transfer number 6021/2010.
3. The first and second defendants shall pay the costs of suit on a legal practitioner and client scale jointly and severally, the one paying, the other to be absolved.

CASE 2 – CASE NO. HCH 3532/16

INTRODUCTION

This is the claim by Gamesgo Investments (Private) Limited against Leonfer Investments (Private) Limited. Gamesgo Investments (Private) Limited, the plaintiff, is a company duly registered in terms of the laws of Zimbabwe. The defendant, Leonfer Investments (Private) Limited, is also a company duly registered in terms of the laws of Zimbabwe. The plaintiff seeks the remedy of *rei vindicatio*, namely the ejectment of the defendant from its property, being certain piece of land situate in the district of Salisbury called stand 8 Malvern Township of Waterfall Villa of Waterfall, measuring 1,3797 hectares, held under Deed of Transfer number 6022/2010. As stated above, this matter was consolidated with Case 1 by the order granted by MUSITHU J. The defendant had defended the proceedings and at the commencement of the proceedings was represented by the same legal practitioner as in the other matter. The first defendant in Case 1 had testified when the trial started that he is a director of this company and would lead evidence on its behalf in respect of this matter as well.

THE PROCEEDINGS ON 11 JUNE 2026

Following Mr *Ncube*'s withdrawal from the case, the first defendant told the court that he was not representing the company. This followed arguments by Mr *Mpofu* that Mr *Muvirimi* had

no right to make an application for postponement on behalf of a corporate body. Counsel had submitted that the defendant, being a corporate entity, cannot represent itself and must be represented by a legal practitioner in this court in terms of the law. The following cases were cited as authority for that legal position: *Lees Import and Export (Pvt) Ltd* v *Zimbank* 1999 (2) ZLR 36 (S); *Pumpkin Construction (Pvt) Ltd* v *Chikaka* 1997 (2) ZLR 430 (H); *Diana Farm (Pvt) Ltd* v *Madondo N.O & Anor* 1998 (2) ZLR 410 (H).

Mr *Muvirimi*, however, was very clear that he was not representing the company, and that the application he had made for postponement of the trial was his own, in his personal capacity as the first defendant in Case 1. Accordingly, when the application for postponement made by the first defendant in Case 1 was refused, there was no appearance for the defendant in this case. The court was satisfied that the defendant was in default.

THE UNCONTESTED CLAIM

The court recorded that the defendant was in default and accordingly struck out its defence to the claim. The matter proceeded as uncontested. Mr *Mpofu* applied for a default judgment to be entered against the defendant, as prayed for in the summons. There being no appearance for the defendant in this case and its defence having been expunged from the record, the court was satisfied that judgment ought to be entered against the company as prayed for in the summons. The court accordingly enters judgment for the ejectment of the defendant from the plaintiff's property in this case.

Accordingly, it is hereby ordered that:

1. The defendant and all those claiming occupation through it shall vacate certain piece of land situate in the district of Salisbury called stand 8 Malvern Township of Waterfall Villa of Waterfall, measuring 1,3797 hectares, held under Deed of Transfer number 6022/2010.

2. The defendant shall pay the costs of suit.

DEMBURE J: ……

Atherstone & Cook, plaintiffs' legal practitioners